

IN THE PROCURMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCURMENT REGULATORY AUTHORITY

PRC Appeal No. 08/2025

M/S Consultracts (Pvt.) Limited
Through Its Muhammad Waqar, Director

..... APPELLANT

Versus

- 1. The Managing Director, B-TEVTA, Quetta.***
- 2. The Chairman, Complaint Redressal Committee / Additional Secretary, Labour & Manpower Department, Civil Secretariat, Quetta,***
- 3. The Director MIS, B-PPRA, Quetta.***
- 4. The Secretary, Labour & Manpower Department, Civil Secretariat Quetta, Government of Balochistan.***

..... RESPONDENTS

Quorum:

1. Mr. Habib Ur Rahman JamotChairman PRC
2. Mr. Mubashir Ali Khan (FCIPS).....Member PRC
3. Engr. Junaid Shah.....Member PRC
4. Engr. Muhammad Ayub NasirTechnical Member PRC
5. Abdul Wahab Buledi, Advocate.....Private Member PRC

01/08/2025

APPEAL UNDER RULE 56-A OF BALUCHISTAN PUBLIC PROCUREMENT RULES 2014 AGAINST THE
CRC DECISION DATED 30-06-2025 TSE No: 242504688052

For the Appellant: Mr. Muhammad Waqar, Director, M/S. Consultracts (Pvt.) Ltd.

For the Respondents: Mr. Abdul Ghaffar, Deputy Secretary Labour Department.
Mr. Bahad Baloch, Assistant Director B-TEVTA
Mr. Ghulam Raza Hussain, Assistant Director B-TEVTA.

Date of Final Hearing: 30-07-2025

Decided on: 01-08-2025

DECISION

Mubashir Ali Khan (FCIPS) – Member PRC. The Appellant, by leave of this Committee has challenged the impugned act of assigning lower marks to the Appellant during the technical evaluation of bids by the Respondent No. 1

2. Brief facts of the case are that the Appellant in capacity of a bidder participated in the electronic Tender titled “Service Required for Chief Minister’s Youth Skill Development Program for Overseas Employment Balochistan Phase-II” with estimated approved budget of PKR. 500,000,000/- (Five Hundred Million) advertised vide TSE No. 242504688052 on the BPPRA ePPS by the Respondent No. 1, adopting Two stage bidding procedure. The evaluation criteria were set to be the quality-cost selection method, where the weightage of quality & cost was 70% & 30 % respectively.

3. The Appellant claims his technical bid to have been incorrectly evaluated by the statutory Procurement Committee (PC) thereby depriving him from his lawful right of being awarded the said Contract notwithstanding his claimed compliance with requirements of the criteria set forth by the Respondent No. 1. aggrieved thereby, the Appellant filed a Grievance before the statutory Complaint Redressal Committee (CRC), pursuant to Rule 56 of the Balochistan Public Procurement Rules 2014

(BPPR) which was decided on 30th June 2025, which was communicated to the Appellant on 21st July 2025. The CRC has held that the Appellant is aggrieved owing to BPPRA's ePPS, which is an external factor to the procuring agency and, if the appellant is not satisfied with the decision of CRC, the Appellant may approach the statutory Procurement Review Committee under BPP Rule 56-A. Hence, the Appellant has invoked the jurisdiction of this Committee.

4. Learned Counsel for the Appellant, while assailing the non-responsiveness of his Client, referred to the printouts of HR documents & Audit Reports, said to be the attachments of the electronically submitted technical proposal of his client, pleaded that had the documents, presently not reflecting on the dashboard of Respondent No. 1, been visible, his Client would have been declared technically responsive and considered for second stage and subsequently the financial evaluation.

5. That Interim Order was granted to the Appellant vide Order Sheet dated 23rd July 2025 and the Respondents were directed to file their reply. Furthermore, the Respondent No. 3 was directed to submit a comprehensive report whether the supporting attachments of the bid are available on BPPRA ePPS or otherwise? Meanwhile this committee has passed an interim order restraining the Respondent No. 1 to further proceed with the procurement process.

6. On next date of hearing, on the 29th July 2025, a reply was filed by the Respondent No. 1, and the Respondent No. 3 submitted a detailed report on the context, nature, causes, effects and the system log information of the technical issue stating the system logs, system review and conclusion, which are as under:

"1. Document Availability:

- The supporting documents were uploaded in ePPS cache however, they are not electronically retrievable

2. System Review:

- attachments were identified during backend inspection.

3. Possible Causes:

- Based on system behaviours, potential causes include:
 - Due to multiple attachments under overlapping or conditional fields, the system encountered a document rendering issue.
 - Browser caching without confirming upload.

Conclusion:

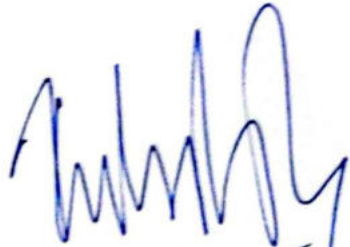
In the case of M/S Consultracts (Pvt) Ltd, the documents uploaded to the ePPS server were not retrievable from the system database owing to various technical reasons."

7. We have gone through the contents of appeal, replies filed by the Respondents and have particularly perused the report of Respondent No. 3 dated 29th July 2025 which reflects that although the supporting documents were pushed in to the system by the Appellant but could not be handled by the system due to technical issues, and the Respondent No. 3 despite repeated attempts, could not retrieve or make visible the said documents on the ePPS dashboard of the Respondent No. 1, which is purely a technical unexpected glitch of the ePPS and was neither on part of the Appellant nor the Respondent No. 1.

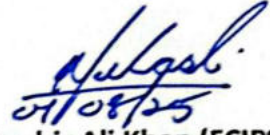
In view of above, the Appeal in hand is allowed and the impugned decision dated: 30th June 2025 passed by the Respondent No. 2 is set aside. As the retrieval of the missing HR documents & the Annual Audit Reports from the ePPS is electronically not possible by the Respondent No. 3, hence we direct the Appellant to manually submit the said documents in printed form to the Respondent No. 1, by or before 6th August 2025, who is further directed to re-evaluate the technical bid of the Appellant in accordance with prescribed criteria under BPP Rule 35(1) without further delay.

The Registrar of this Committee is directed to communicate the copy of this order to the Appellant, all Respondents and the BPPRA for information and necessary compliance.

Announced today, the 1st day of August 2025, under the seal and authority of the Procurement Review Committee

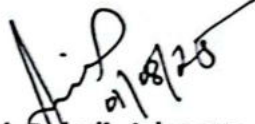

Habib Ur Rehman Jamot
Chairman
Procurement Review Committee

11/8/2025


Mubashir Ali Khan (FCIPS)
Member
Procurement Review Committee


Engr. Junaid Shah
Member
Procurement Review Committee


Engr. Muhammad Ayub Nasir
Technical Member
Procurement Review Committee


Abdul Wahab Buledi, Advocate
Private Member
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